What Is Probate?

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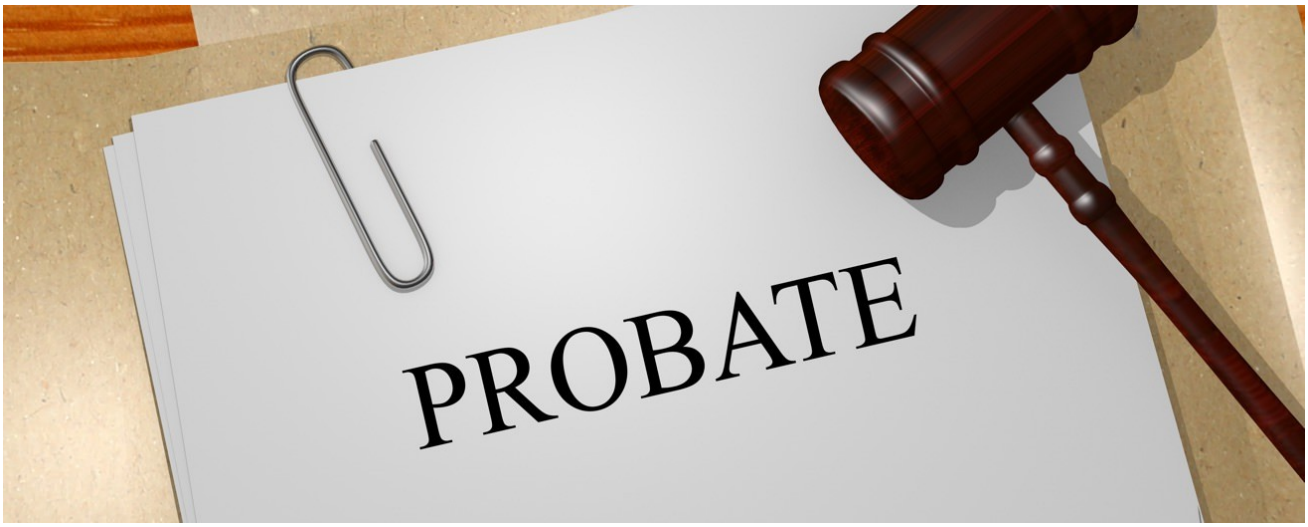

Key Takeaways

- Even if there's a will, a grant of probate is still required
- The process of probate can take some time
- You may need a lawyer to help with the paperwork

Probate is a legal process for distributing your estate according to the terms of your Will. The executor named in the Will has to apply for a Grant of Probate to legally distribute a deceased's assets.

How To Apply

Depending on the value or complexity of the estate, a lawyer may or may not be needed. A lawyer can help an executor:

- Verify the original will at the Probate Counter, Registry of the Family Justice Court
- Present court papers to extract the Grant of Probate. Documents include originating summons, supporting affidavit and schedule of assets

The whole process may take three to six months. You may receive the Grant of Probate within a month of filing the last court document.

As for which Court to apply to, generally, estates with assets of less than $5 million fall under the jurisdiction of the Family Courts. Estates of a higher value fall under the Family Division of the High Court.

Documents Needed

You will need the following documents:

- Original death certificate of the deceased
- Original will of the deceased
- The deceased’s marriage certificate (if any)
- Original death certificates of next-of-kin who have passed on
- Original death certificate of executor who may have passed on
- Children’s identity cards and birth certificates

What If There Is No Will?

Without a will giving clear instructions on how to distribute an estate, the probate process gets more complicated. It will be longer and more expensive.

Here's a look at the probate process with and without a will:

Without A Will	With A Will
Your family receives a death certificate.	Your family receives a death certificate.
Your family has to decide on an administrator for your estate, or have one appointed by the Court. The administrator is usually the spouse or one of the next-of-kin of the deceased, i.e. a beneficiary under the Intestate law (for non-Muslims) or by Muslim law (for Muslims).	The executor you appointed applies to the Court for a Grant of Probate with a Schedule of Assets and other relevant documents.
If your family wants to waive their rights to be administrators, they need to write to the Court.	**Grant of Probate** is issued.
The assigned administrator files an Administration Bond with 2 sureties. Each surety must have assets worth the total value of your estate.	The executor distributes your estate according to your Will.

With a Schedule of Assets, the administrator will apply to the Court for the Letters of Administration.

Grant of Letters of Administration is then issued.

The administrator distributes the estate according to the Intestate Succession Act.

Once the Court has issued the Grant, the administrator or executor may bring it to the banks or to HDB to get access to your assets.

For Muslim Estates

An applicant for Letters of Administration involving a Muslim estate has to apply online for an Inheritance Certificate from the Syariah Court specifying the beneficiaries of the estate and their respective shares of the estate.

Alternatives to the Grant of Probate

If your estate is less than $50,000, your family can apply to the Public Trustee's Office for help in administering it, instead of going to Court. They don't have to apply for a grant of probate, provided they meet all the requirements.

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